

STATE OF NEW YORK

8559--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 20, 2025

Introduced by M. of A. OTIS -- read once and referred to the Committee on Cities -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend chapter 799 of the laws of 2021, relating to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the state and/or city of New Rochelle, in relation to reversion of title to the Armory Building, the annex and the underlying land of such structures, and reversion of the dedicated space for veterans organization use, to the state of New York upon the breach of certain conditions

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision (b) of section 2 of chapter 799 of the laws of 2021, relating to authorizing the city of New Rochelle, county of Westchester to sell, convey and alienate certain land, in furtherance of an economic development interest of the state and/or city of New Rochelle, as amended by chapter 467 of the laws of 2022, is amended and a new subdivision (d) is added to read as follows:

(b) any such deed transferring the parcel described in section four of this act provides (i) for the preservation of the Armory Building, including the annex, and (ii) a dedicated space for veterans organization use at no charge or a de minimis rental amount as approved by the city council.

(c) Such deed or other document of conveyance shall provide (i) that in the event of a breach of the ~~conditions~~ condition in ~~this~~ paragraph (i) of subdivision (b) of this section, title to the ~~land transferred to the city of New Rochelle by section four of this act~~ Armory Building and the annex and the underlying land of such structures shall revert to the state of New York. Provided however, upon the receipt by the owner of a certificate of occupancy for the Armory Building and the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 annex, any and all rights of reverter and/or reversion that the state
2 may have in and to such real property shall be permanently released and
3 extinguished and relinquished forever; and (ii) that in the event of a
4 breach of the condition in paragraph (ii) of subdivision (b) of this
5 section, such dedicated space shall revert to the state of New York.

6 (d) The state shall continue to have the right to enforce in law or
7 equity, including the right to seek injunctive relief or specific
8 performance, the conditions established pursuant to subdivision (b) of
9 this section.

10 § 2. This act shall take effect immediately.